



Tribunals Ontario

Landlord and Tenant Board

Practice Direction on Applications Involving Non-Profit Housing Cooperatives

(Disponible en français)

This Practice Direction describes the Landlord and Tenant Board's (LTB) process for hearing and deciding applications made to it by a Non-Profit Housing Cooperative (Co-op) under Part V.1 of the Residential Tenancies Act (RTA). It provides guidance about what the LTB expects of parties and in turn what the parties can expect of the LTB. It assists in understanding the [LTB's Rules of Procedure](#), which include the Rules on Non-Profit Housing Co-operatives and the Social Justice Tribunals Ontario Common Rules.

The LTB guidelines may also apply by analogy to applications made under Part V.1 of the RTA. However, the LTB's approach in the context of Co-op applications will evolve over time and be developed in the LTBs case law. Please refer to Co-op application decisions as and when they are reported. Many LTB decisions are reported at: www.canlii.org

Background

Under Part V.1 of the *Residential Tenancies Act, 2006*, S.O., 2006, c.17 (RTA), a Non-Profit Housing Co-op may apply to the LTB for an order terminating a former member's occupancy in the Co-op and evicting the former member.

Filing a Complete Application

A complete application must be filed with the LTB. The Co-op must attach to the application form the Notice of Termination served under Part V.1 of the RTA on the former member. The application form must provide any additional facts, other than those set out in the Notice of Termination, and include any documents, upon which the Co-op intends to rely in proceedings before the LTB.

The application must include a signed declaration from a person with authority to bind the Co-op certifying that the member's occupancy rights were terminated in accordance with the requirements of s. 171.8 of the *Co-operative Corporations Act*.

The applicant must file the complete application with the LTB at co-opprocessingLTB@ontario.ca. Please contact the co-op processing office at 416-314-7061 or toll-free at 1-844-288-7221 if you are unable to file the application by email.

Notice of Hearings

After receiving the complete application, the LTB will schedule a Case Management Hearing (CMH) and a Merits

Hearing, and give Notice of Hearings to the parties at least 10 days before the day of the CMH. The Notice, containing important information about both hearings, including when and where the hearings are to be held, will be mailed to the respondent and e-mailed to all parties. The Notice will also set the date by which a response to the application must be served on the applicant and filed with the LTB.

A request to adjourn the CMH will only be granted in exceptional circumstances. (See the section on Adjournment Requests below.) If you wish to have legal representation at the CMH, contact your lawyer or a legal clinic as soon as you receive the Notice of Hearings.

The LTB may schedule the CMH in person or as a telephone or video conference call. The form of hearing will be identified on the Notice. If the CMH is to be in person the Notice will set out the date and time of the hearing and the address where it will take place. If the CMH is to be conducted by telephone, the Notice will include the date, time and the teleconference number. If you do not have access to a telephone you must immediately advise the LTB and alternate arrangements will be made.

Serving and Filing a Complete Response

A respondent must complete a Response Form responding to all the allegations in the application and including any additional facts and issues that the respondent intends to raise at the hearings.

The Response must be filed with the LTB and delivered to the applicant as soon as possible, but no later than the date specified in the Notice of Hearings. A Certificate of Service, signed by the individual who served the Response must be filed with the LTB as soon as possible but no later than five days after delivery of the Response to the applicant.

The Response and Certificate of Service forms may be filed by email at co-opprocessingLTB@ontario.ca, in person to an LTB or Service Ontario location, by fax at 416-314-9567 or toll-free at 1-855-220-1676, or by mail to Toronto North District Office, 47 Sheppard Avenue East, Suite 700, Toronto, Ontario M2N 5X5.

The Case Management Hearing

The LTB will usually schedule a CMH within three to four weeks of the application being filed. The CMH has two purposes. First, it provides an opportunity for parties to explore settlement of the issues in dispute, usually with an LTB Hearing Officer who is trained in dispute resolution. Second, if parties are unable to resolve all the issues in dispute, the LTB will make directions to facilitate a fair, just and expeditious hearing, or in appropriate circumstances, make orders finally determining matters agreed to by the parties, or not in dispute.

What to Expect at a Case Management Hearing

A CMH may be conducted by a Member or Hearing Officer of the LTB, although it will usually be conducted by a Hearing Officer.

Settlement Discussions

Parties are encouraged to come to the CMH prepared to consider settlement. Where a settlement is reached, the LTB will issue an Order incorporating the terms of settlement and disposing of the application (Consent Order). Where parties reach an agreement on some, but not all issues, the Hearing Officer will issue an Order on agreements reached during the CMH.

All discussions about settlement are confidential. However, Orders issued will incorporate any terms of settlement, and agreed statements of facts by parties are admissible at Hearings.

Case Management

Where the parties are unable to settle all issues, the LTB will proceed with case management. If a party has not already done so, this is an opportunity to identify Human Rights Code, French Language Service or American Sign Language / Quebec Sign Language needs. Moreover, parties will be asked to consider the following:

- facts and evidence that may be agreed upon;
- the dates by which any steps in the proceeding are to be taken or begun;
- the clarification and simplification of issues in dispute;
- disclosure and production of materials arguably relevant to the issues in dispute;
- the number and identity of witnesses each party intends to call, and discussion of whether all proposed witnesses are necessary; and
- the amount of time necessary to complete the hearing.

At this stage of the CMH, the LTB Members or Hearing Officer will issue any orders necessary for the fair, just and expeditious conduct or resolution of the issues in dispute. This includes issuing orders for disclosure of arguably relevant documents or materials, identifying the issues in dispute, requiring payment of money into the LTB and setting out procedural matters that the parties may agree on.

Attendance Required

If the applicant does not attend the CMH, the LTB will dismiss the application as abandoned unless there are exceptional circumstances.

If the respondent does not attend the CMH, and no response to the application has been filed, the respondent may be deemed to have accepted all of the facts and allegations in the application. A hearing of the merits may proceed the same day, and the LTB may decide the application based only on the material before it.

If the respondent does not attend the CMH, but a response to the application has been filed, the matter will proceed to a full hearing of the merits of the case on the date scheduled for the merits hearing, without further notice to the parties. The LTB may not allow the respondent to present evidence without first being satisfied there is a reasonable explanation for the respondent's failure to appear at the CMH.

What to Bring to the Case Management Hearing

Parties are encouraged to bring all arguably relevant information about the issues in dispute to the CMH. For example, in a dispute over the non-payment of regular monthly housing charges, proof of payment should be brought to the CMH. Witnesses do not need to attend the CMH.

Rescheduling

Requests to reschedule the CMH will be refused unless there are exceptional circumstances.

The Merits Hearing

Where parties are unable to resolve all issues, the hearing on the merits of the application will proceed as scheduled. The LTB will not reschedule hearings except in exceptional circumstances.

Any document intended to be relied on at the merits hearing must be disclosed in advance of the merits hearing.

Hearings will be conducted by an LTB Member, who will listen to both sides, evaluate the evidence and make a final decision about all issues remaining in dispute.

At the end of the hearing, the Member will issue an Order disposing of the application.

Adjournment Requests

Requests for adjournments will rarely be granted, since they could result in a significant impediment to fair and timely access to justice. In determining whether to grant or deny a request for an adjournment, the LTB will consider all the relevant circumstances, including the nature of the issues raised in the application and any prejudice that may result.

Adjournment requests for CMHs will only be granted in exceptional circumstances. Rather than arranging a new date for a CMH, the LTB could direct the parties to attend a merits hearing on the scheduled date in order to resolve all the issues in dispute.

Whenever an adjournment request is granted, the LTB will make any order, or give any direction, it considers appropriate for the fair, just and expeditious hearing of the issues in dispute, including denying any further adjournment requests unless there are exceptional circumstances, requiring payment of money into the LTB, and ordering costs.

Representation at Hearings

Respondents may be self-represented before the LTB and present their own case. Respondents may also choose to have another person represent them. Because a Co-op is a corporation it must have a representative appear on its behalf in the LTB proceeding.

The SJTO's Common Rule A9 applies to representation before the LTB. Review the [Practice Direction on Representation before the Landlord and Tenant Board](#) which explains who may appear as a representative before the LTB and responsibilities of representatives in LTB proceedings.

Support Persons

A support person, such as a family member or friend, may attend a hearing or mediation with a party or witness to assist the person in participating in the proceeding, communicating with the LTB and making necessary decisions and may sit with the party during the hearing or mediation. Such a support person is not considered a representative, so long as they do not make submissions on the party's behalf.

Ex Parte Applications

Under sections 78(1) and 94.10 (1) of the RTA, a Co-op may, without notice to the former member, apply to the LTB for an Order terminating the former member's occupancy and evicting the former member. These applications may be decided without a hearing and the process described in this Practice Direction will not apply.

December 15, 2018

tribunalsontario.ca/ltb